Making Conservation Work on Private Working Lands

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Abstract

Much of the most ecologically valuable land in the United States exists outside of public conservation areas and is actively managed for agriculture, ranching, development, or other economically productive uses. Even without formal protection, these working lands often support important habitat and ecological function. At the same time, they provide broader social benefits such as water regulation, food and fiber production, recreation, and cultural landscape value, which makes their conservation importance extend well beyond biodiversity alone (Weathersby & Julian, 2025).

Federal regulations such as the Endangered Species Act (ESA) and the National Environmental Policy Act (NEPA) remain important tools for preventing environmental harm. Still, these policies often emphasize procedural compliance and mitigation more than measurable conservation outcomes on private land. That limitation reflects a broader challenge in conservation policy: identifying ecological priorities is not the same as producing effective action on the ground (Knight et al., 2006).

This paper examines whether regulation alone is sufficient to protect ecological resources on working lands. It argues that conservation policy is more effective when it includes incentive-based strategies that work with existing land uses rather than against them. Due to working lands being shaped by economic and management realities, successful conservation depends on policies that align ecological goals with the actual conditions under which landowners make decisions.

Introduction

Private working lands are one of the most important yet often underappreciated parts of conservation in the United States. Agricultural lands, ranchlands, and other privately managed landscapes cover a large share of the country and regularly support wildlife habitats, native plant communities, and ecological processes. Because so much of the American landscape is privately owned, conservation outcomes are often determined not only by what happens in parks or federal lands, but by the everyday management decisions made on working properties. These landscapes also provide provisioning, regulating, and cultural benefits, meaning that they support more than ecological systems, as they benefit rural economies, heritage, tourism, and water resources (Weathersby & Julian, 2025).

That reality does not always line up with the way conservation policy has traditionally been structured. Much of environmental law has been built around regulation and protection, which are necessary in many cases, but not always well suited to encouraging active ecological improvements on productive land. In practice, many conservation laws are better at preventing certain harms than at generating long-term stewardship. That creates a disconnect between the way policy is written and the way land is actually managed. Knight et al. (2006) describe this more broadly as an implementation crisis in conservation, where institutions are often much better at identifying where conservation should happen than at making sure it actually happens.

That gap matters on working lands because these are not untouched landscapes. They are active, economically used places where conservation has to coexist with production, livelihoods, and long-term ownership. This leads to an important question: how effective are current regulatory approaches at producing meaningful conservation outcomes on private working lands, and what alternatives may perform better?

This paper argues that conservation on working lands is most effective when policy moves beyond compliance-focused regulation and toward incentive-based and outcome-driven strategies. Policies that align ecological goals with productive land use are more likely to support long-term conservation on private lands. More importantly, they are more likely to treat landowners not simply as possible sources of environmental harm, but as long-term participants in stewardship and land management (Cortés-Capano et al., 2021).

Background

Working lands play a major role in the conservation landscape of the United States. Agricultural and ranching lands occupy a substantial share of the country's total land area and often function as habitats for wildlife and native plant communities. In many places, these lands operate as de facto conservation spaces even though they are managed for economic use. Weathersby and Julian (2025) argue that working lands should be understood as social-ecological systems because they provide habitat and ecological services, but also food production, groundwater protection, scenic value, recreation, and cultural identity. Their research is useful because it pushes conservation beyond a narrow habitat lens and shows that these landscapes hold overlapping ecological and human value.

Federal environmental regulations such as the Endangered Species Act (ESA) and the National Environmental Policy Act (NEPA) remain central safeguards for protecting ecosystems and species. They help to prevent harmful activities through environmental review, consultation requirements, and protections for threatened species and their habitats. According to testimony from the Department of the Interior, the ESA was designed to conserve endangered and threatened species as well as the ecosystems they depend on, while also requiring federal

agencies to avoid actions that would jeopardize listed species or adversely modify critical habitat (Manson, 2005). On paper, that is a powerful conservation framework.

In practice, though, regulation does not always translate into ecological improvement. The same Interior testimony noted that ESA implementation has increasingly been shaped by litigation, critical habitat disputes, and procedural burdens that can pull time and resources away from more direct conservation and recovery efforts (Manson, 2005). That helps explain why regulation-heavy systems can feel protective in theory while producing uneven results in practice.

This is especially complicated on private land. Compliance may prevent certain forms of environmental harm, but it does not automatically produce habitat, stronger stewardship, or long-term ecological management. In some cases, it can do the opposite. Langpap (2006) argues that this is one of the major weaknesses of the ESA on private lands, where landowners may see endangered species as liabilities because species presence can trigger restrictions on otherwise lawful land uses. Under those conditions, regulation can unintentionally discourage the stewardship behaviors that recovery efforts actually need (Langpap, 2006).

That tension has helped drive interest in alternative conservation approaches. Strategies such as conservation easements, voluntary stewardship programs, and payments for ecosystem services are designed to encourage conservation through incentives rather than through restriction alone. These approaches attempt to make conservation more compatible with working land management. Rissman and Sayre (2012) show that conservation easements on private ranchlands can influence land management both directly, by limiting subdivision or certain land uses, and indirectly, by building relationships, expanding access to resources, and strengthening conservation-oriented networks. Their work is important because it shows that private land

conservation tools are not just legal instruments. They also function as social and institutional arrangements shaped by trust, capacity, and local contexts.

There is also a broader legal issue in the background. Ruhl (2010) argues that many older environmental laws lag behind newer ecological science and often struggle to incorporate ideas such as ecosystem services and landscape-scale function. That does not mean the laws are irrelevant. It means that legal frameworks built around older regulatory assumptions may need more flexible interpretation if they are going to support contemporary conservation goals.

Proposed Policy

Conservation policy on working lands should shift toward strategies that work with existing land use practices rather than attempting to restrict them. Because these landscapes are actively managed for economic purposes, conservation policy needs to recognize that landowners play a central role in shaping ecological outcomes. Policies built primarily around deterrence may establish a floor, but they rarely create the kind of long-term stewardship that working lands conservation actually depends on. Policies that treat landowners as conservation partners are more likely to produce durable ecological benefits.

A key part of that shift is incentive-based participation. Programs that provide financial or technical support for conservation practices can encourage landowners to adopt management strategies that benefit ecosystems while still maintaining productive land use. Langpap (2006) found that incentive programs can increase conservation effort among private landowners, especially when they include compensation and assurances about future regulation. That matters because it suggests that policy success is not just about whether conservation is required, but about whether participation feels realistic, fair, and manageable from the landowner's

perspective. Cortés-Capano et al. (2021) found something similar, showing that landowners were more likely to participate in voluntary private land conservation when policies aligned with their values and needs and when support was flexible rather than rigidly standardized.

Several policy tools fit this approach. Payments for ecosystem services could compensate landowners for maintaining habitat, improving soil health, or protecting water resources. Conservation easements with adaptive management clauses could protect land while still allowing enough flexibility for conditions to change over time. Rissman and Sayre (2012) show that easements are especially effective when they are backed by strong institutional relationships, management support, and monitoring structures that reinforce long-term stewardship rather than simply locking in a static set of restrictions.

Public-private partnerships could also help support landscape-scale conservation efforts. When agencies, conservation organizations, and landowners are working toward the same landscape-scale outcomes, conservation becomes more realistic and more durable. The Department of the Interior's ESA testimony points to existing tools such as Safe Harbor Agreements, Candidate Conservation Agreements with Assurances, Habitat Conservation Plans, and conservation banking as examples of mechanisms that already attempt to do this by combining conservation goals with flexibility and regulatory certainty (Manson, 2005). Those programs are not perfect, but they do show that a more cooperative approach is already possible within existing conservation policy.

Policy Analysis

Regulation-heavy approaches to conservation have clear strengths, but they also have serious limitations when applied to working lands. They can prevent environmental harm,

establish minimum protections, and create enforceable legal standards. Those functions matter, but compliance with procedural requirements does not necessarily guarantee meaningful ecological outcomes, especially on private land where conservation depends on long-term management decisions. When policy is built too heavily around restriction, it can also create barriers for landowners who might otherwise be willing to participate in conservation.

Knight et al. (2006) argue that conservation planning frequently breaks down at the point of implementation because too much attention is placed on technical assessment and too little on collaboration, implementation strategy, and the institutional processes needed to secure action. That critique applies especially well to working lands. On privately owned and economically productive landscapes, conservation success depends on both identifying what must be protected and influencing how land is actually managed over time.

Incentive-based conservation approaches offer a more promising path in that respect. Programs that reward conservation practices can increase landowner engagement, create room for collaboration, and support long-term stewardship. Langpap (2006) found that compensation and assurances were especially effective in increasing willingness to provide conservation effort, which suggests that landowners respond strongly when policy addresses concerns about fairness, autonomy, and future regulatory risk. Cortés-Capano et al. (2021) adds another layer by showing that participation is not driven by money alone. Non-monetary factors, including technical support, training, and policy flexibility can also be important, which means that effective incentive design has to account for the diversity of landowner motivations and circumstances.

That said, incentive-based are not automatically better in every case, as they come with their own trade-offs. These programs often depend on stable funding sources, capable institutions, and administrative support. Participation may also vary across regions and land uses

depending on economic conditions and landowner priorities. Rissman and Sayre (2012) show that outcomes can depend heavily on trust, organizational capacity, and local institutional structure, meaning that even well-designed conservation tools such as easements do not produce identical results everywhere. Similarly, Ruhl (2010) points out that incentive-based conservation still has to operate within legal frameworks that are not always well aligned with contemporary ecological science. The problem, then, is whether the broader policy system is capable of translating ecological goals into workable forms of action.

For that reason, a hybrid model may offer the most effective approach. Regulations should continue to establish a baseline level of environmental protection, especially where species or habitats are at serious risk. Incentives and collaborative programs, though, should do more of the work of driving ecological improvement across privately managed landscapes. This kind of hybrid structure is also consistent with existing federal practice. The ESA already contains a combination of regulatory protections and cooperative tools, and the broader literature suggests that conservation on working lands improves when voluntary participation, assurances, and outcome-oriented support play a larger role alongside legal safeguards (Manson, 2005; Langpap, 2006). That combination is better suited to working lands than a model that relies mainly on regulatory practices alone.

Conclusion

Conserving ecological value on private working lands presents a unique challenge for environmental policy because these landscapes are both ecologically important and economically productive. Any serious conservation strategy must account for both sides of that reality. Working lands do not matter just because they can support species and habitats. They also

provide water resources, rural identity, food production, recreation, and long-term landscape resilience, which makes their conservation important on multiple levels (Weathersby & Julian, 2025).

This paper has argued that regulatory frameworks alone are often insufficient for achieving meaningful conservation outcomes on private lands. While regulations remain important for preventing environmental harm, they do not necessarily encourage long-term ecological improvements. As the literature suggests, legal protection without implementation capacity, stakeholder engagement, or adaptive management often falls short of producing lasting conservation action (Knight et al., 2006)

Incentive-based and collaborative conservation strategies offer a more flexible and effective approach because they better align conservation goals with productive land use. By recognizing landowners as partners in conservation rather than simply subjects of regulation, policy can better support long-term responsible ownership and management. Evidence from studies of private landowners, conservation easements, and voluntary agreements suggests that conservation is more likely to succeed when policies reduce perceived risks, provide usable support, and reflect the social realities of land management rather than relying only on restriction (Langpap, 2006; Cortés-Capano et al., 2021; Rissman & Sayre, 2012).

Successful conservation on working lands will depend on policies that integrate ecological, economic, and social systems rather than pretending that those systems can be separated. Conservation is more likely to succeed when it shapes how land use evolves over time rather than relying only on constraint. That also means existing environmental laws may need to be applied more adaptively so that conservation policy can better reflect contemporary ecological science and focus more clearly on measurable outcomes (Ruhl, 2010).

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